

f) Denial or conditional approval of teaching release, summer salary, and graduate student researcher support during the relocations of Plaintiff's lab from Pierce Hall to Pierce Annex in 2019 and from Pierce Annex back to Pierce Hall in 2021 and 2022; [and]

g) Decisions concerning Plaintiff's institutional review process resulting in the absence or delay of merit advancement for Plaintiff since July 1, 2019, despite the documented record of Plaintiff's research, teaching, and service performance.

11. Defendant Mueller's dual capacity, both as the institutional decisionmaker for many of these matters and as a peer-level subject matter expert in experimental physical chemistry, places within his personal knowledge a wide range of factual and professional propositions that are properly the subject of Requests for Admission to narrow the issues for trial.

(Gordon Decl., Ex. 1, Declaration for Additional Discovery at ¶¶ 6-13.)

This is sufficient for Plaintiff to meet his burden of justifying the RFAs served on Mueller. **Accordingly, the motion is denied.**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500492	KRAIN vs MOREHEAD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

All parties are ordered to appear for hearing. Remote appearances are permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The meet-and-confer was inadequate. The court continues the hearing, requiring a code-compliant meet-and-confer regarding the operative FAC filed on May 6, 2026.

The hearing on the demurrer to the First Amended Complaint ("FAC") filed with the Court on May 6, 2026 is continued to September 8, 2026, at 8:30 a.m.. Defendant is

ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff regarding for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet-and-confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the demurrer, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 430.41(a)(3).)

No further briefing is permitted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507291	GONZALEZ vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

Meet and Confer

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2), emphasis added.) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3), emphasis added.) It is unclear if the parties complied. Though email was exchanged, defense counsel's declaration fails to state whether the parties met and conferred in person, via telephone, or video conference. (Hogoboom Decl., ¶¶4-5.) Of note, on June 4, 2026, this Court set an OSC re: Failure to Meet and Confer for the same defective declaration.

The Court will rule on the demurrer to move the case forward.